Dakota Access, Keystone XL and Pipeline Resistance

42 key historical facts stated in Jeff Kisling's blog posts on this topic, each checked against an outside source.

Dakota Access, Keystone XL and Pipeline Resistance

The posts follow the campaigns against oil and carbon pipelines from 2013 to 2025. They cover the Keystone XL Pledge of Resistance and Keystone XL's rejection, revival and cancellation; the Dakota Access Pipeline's route, Iowa permits and eminent domain, the Standing Rock camps, and the federal and Iowa court cases; Line 3; and the proposed Summit and Navigator CO2 pipelines in Iowa.

42 facts checked against outside sources, 1 of them corrected (the posts had a detail slightly wrong; the corrected version is shown). Each fact lists the source that confirms it and the posts that state it. The wording is a plain summary, not a quotation from the posts.

Facts

1. 2013

In summer 2013 the Pledge of Resistance organizers ran weekend trainings for local 'action leaders' in 25 U.S. cities, teaching them to plan nonviolent direct actions and to train others.

- **Source:** The Keystone XL Pledge of Resistance takes off (Waging Nonviolence)
- **In the posts:** Significance of President Obama's Keystone Decision (2015-11-07); Keystone XL Pipeline Permit Canceled (2021-01-21)

2. 2013

The Keystone XL Pledge of Resistance, organized by CREDO, the Rainforest Action Network and The Other 98%, launched in spring 2013; signers pledged to risk arrest in civil disobedience if the Obama administration moved to approve the Keystone XL pipeline, and more than 94,000 people had signed by April 2014.

> ***Note:*** *The posts give a final total of over 97,000 signers and a launch date of March 6, 2013; the sources checked confirm spring 2013 and more than 94,000 signers by April 2014, but not those exact figures.*

- **Source:** The Keystone XL Pledge of Resistance takes off (Waging Nonviolence); Decentralized Actions Ready to Stop Keystone XL (Rainforest Action Network)
- **In the posts:** Significance of President Obama's Keystone Decision (2015-11-07); Keystone XL Pipeline Permit Canceled (2021-01-21); Keystone XL is dead (2021-06-10); Lessons Learned from the Keystone Pledge of Resistance (2018-06-05)

3. 2015

Bold Iowa was founded in 2015 to oppose the Dakota Access Pipeline; its founder and director is Ed Fallon, a former Iowa state representative.

> ***Note:*** *Wikipedia's Ed Fallon article dates his direction of Bold Iowa from 2016; Bold Iowa's own press release says it was founded in 2015.*

- **Source:** Response to DAPL Shutdown (Bold Iowa)
- **In the posts:** When you believe in your prayers, pipelines end (2020-07-07)

4. 2015-11-06

On November 6, 2015, President Barack Obama rejected TransCanada's application for the Keystone XL pipeline after the State Department concluded it would not serve the national interest of the United States.

- **Source:** President Obama rejects Keystone XL pipeline plan (MPR News)
- **In the posts:** Keystone Rejected! (2015-11-06); Significance of President Obama's Keystone Decision (2015-11-07); Breaking: Federal Court Overrules Trump and Calls For Full Environmental Review of Keystone XL in Nebraska (2018-08-17)

5. 2016-03-10

On March 10, 2016, the Iowa Utilities Board voted 3–0 to grant Dakota Access a permit for a crude oil pipeline crossing nearly 350 miles and 18 Iowa counties, and allowed the company to use eminent domain on land where owners would not grant easements voluntarily.

- **Source:** Iowa Utilities Board Approves Oil Pipeline (Tri States Public Radio); Dakota Access Pipeline (Wikipedia)
- **In the posts:** Iowa Supreme Court Decision (2019-05-31); US Bank vs Water Protectors (2018-02-02); More DAPL troubles (2017-01-24)

6. 2016-04

The first resistance camp against the Dakota Access Pipeline, Sacred Stone Camp, was set up in April 2016 by Standing Rock Sioux elder LaDonna Brave Bull Allard on her family's land where the Cannonball River meets the Missouri River in North Dakota.

- **Source:** LaDonna Brave Bull Allard (Wikipedia); Dakota Access Pipeline (Wikipedia)
- **In the posts:** Protest and Protect (2019-10-29); The Prophecy of the Black Snake (2019-03-30); Statement of Solidarity with the Red Warrior and Sacred Stone Camps in North Dakota (2016-08-29)

7. 2016-08

In late August 2016 Dakota Access filed a motion for a restraining order against Bold Iowa and its director, Ed Fallon.

> ***Note:*** *Posts also name Iowa CCI and its policy director Adam Mason; Bold Iowa's August 29, 2016 response does not mention them.*

- **Source:** Bold Iowa responds to Dakota Access motion for restraining order against Bold Iowa director Ed Fallon aimed at silencing peaceful pipeline protests
- **In the posts:** Water Protectors Attacked (2016-09-05)

8. 2016-09-03

On September 3, 2016, private security working for the Dakota Access pipeline company used dogs and pepper spray on Native American protesters near a site the tribe had identified as sacred, which had just been bulldozed.

- **Source:** Dakota Access Pipeline Company Attacks Native Americans with Dogs & Pepper Spray (Democracy Now!); Dakota Access Pipeline (Wikipedia)
- **In the posts:** Water Protectors Attacked (2016-09-05); “Is That Not Genocide?” (2016-09-06)

9. 2016-12-04

On December 4, 2016, the U.S. Army Corps of Engineers refused to grant the easement for the Dakota Access Pipeline to cross under Lake Oahe on the Missouri River, saying alternative routes should be explored through an environmental impact statement.

- **Source:** Army Corps Denies Easement and Blocks the Dakota Access Pipeline (Snopes); Dakota Access Pipeline (Wikipedia)
- **In the posts:** The Black Snake (2016-12-05); A #NoDAPL Victory (2020-03-26)

10. 2016-12-05

On December 5, 2016, a group of U.S. military veterans led by Wes Clark Jr. held a ceremony at Standing Rock in which they asked Native elders for forgiveness; Lakota spiritual leader Leonard Crow Dog took part.

- **Source:** 'We beg for your forgiveness': Veterans join Native elders in celebration ceremony (Salon)
- **In the posts:** Healing Begins at Standing Rock (2016-12-07)

11. 2016–2017

The Dakota Access Pipeline, built by Energy Transfer at a cost of about $3.8 billion, runs about 1,172 miles from the Bakken oil fields of North Dakota through South Dakota and Iowa to an oil hub near Patoka, Illinois.

> ***Note:*** *The posts give the length variously as 1,170 miles, 'nearly 1,200 miles' and 1,172 miles.*

- **Source:** Energy Transfer's $4.78bn Bakken pipeline project in US begins operations (NS Energy); Dakota Access Pipeline (Wikipedia)
- **In the posts:** Statement of Solidarity with the Red Warrior and Sacred Stone Camps in North Dakota (2016-08-29); Iowa Utilities Board Press Conference (2020-04-03); NoDAPL Fight Moves From Courts to White House (2021-02-05); Anti-DAPL protestors to march through Story, Boone counties next month (2020-04-03)

12. 2016–2022

Jessica Reznicek and Ruby Montoya damaged Dakota Access pipeline equipment in 2016–2017; Reznicek pleaded guilty and was sentenced in 2021 to eight years in prison with a terrorism enhancement, and in June 2022 a federal appeals court upheld the sentence.

- **Source:** Court upholds 'terrorism' sentencing of pipeline saboteur (Court TV (AP)); Jessica Reznicek terrorism enhancement (The Intercept)
- **In the posts:** Silencing Protest (2019-10-07); Reject Learned Helplessness. Be at the IUB tomorrow. (2022-07-11); Movement to Stop Cop City grows (2023-01-31); We lost someone unnecessarily to police violence (2023-01-30)

13. 2017-01-24 (corrected)

On January 24, 2017, President Donald Trump signed presidential memoranda to advance both the Keystone XL and Dakota Access pipelines, directing the Army Corps of Engineers to expedite the Dakota Access easement.

> ***Correction:*** *A news excerpt quoted in 'A #NoDAPL Victory' says Trump reversed the Obama-era order 'on his second day in office'; he signed the memoranda on January 24, 2017, four days after taking office.*

- **Source:** Trump orders advance of Keystone XL, Dakota Access (E&E News); Dakota Access Pipeline (Wikipedia)
- **In the posts:** A #NoDAPL Victory (2020-03-26); NoDAPL Fight Moves From Courts to White House (2021-02-05); Help Stop Keystone XL (2017-04-10)

14. 2017-02-08

On February 8, 2017, the Army Corps of Engineers granted Dakota Access the easement to build the pipeline across Corps land on both sides of Lake Oahe in North Dakota.

- **Source:** Energy Transfer Announces Receipt of Easement from Army Corps of Engineers
- **In the posts:** Youth Taking Environmental Action (2017-02-10); NoDAPL Fight Moves From Courts to White House (2021-02-05)

15. 2017-02-22

The main protest camp near Standing Rock (Oceti Sakowin) was ordered evacuated by February 22, 2017, and authorities cleared it on February 23, 2017, arresting several dozen people who stayed.

- **Source:** Dakota Access pipeline protesters arrested as deadline to evacuate camp passes (PBS NewsHour); Dakota Access Oil Pipeline Camp Cleared of Protesters (KQED)
- **In the posts:** Standing Rock Eviction Notice 2/22/2017 (2017-02-22); Call to Come to Standing Rock (2017-02-05)

16. 2017-03

In March 2017 the U.S. State Department issued a presidential permit for the Keystone XL pipeline, reversing the Obama administration's rejection.

- **Source:** U.S. State Department Issues Permit For Keystone XL Pipeline (WSHU / NPR)
- **In the posts:** Building an environmental action movement (2017-10-12); Breaking: Federal Court Overrules Trump and Calls For Full Environmental Review of Keystone XL in Nebraska (2018-08-17); Keystone XL is dead (2021-06-10)

17. 2017-06

In June 2017 Iowa Utilities Board member Richard Lozier recused himself from Dakota Access matters because he had earlier represented the pro-pipeline MAIN Coalition in the Dakota Access permit case.

- **Source:** Richard W. Lozier Jr. (Wikipedia)
- **In the posts:** Prophecy about black snake (2021-09-20); Reflections on September Journey (2017-09-14)

18. 2017-06-01

The Dakota Access Pipeline entered commercial service on June 1, 2017.

- **Source:** Dakota Access Pipeline (Wikipedia); Energy Transfer's $4.78bn Bakken pipeline project in US begins operations (NS Energy)
- **In the posts:** A #NoDAPL Victory (2020-03-26); In Iowa, Candidates Slam DAPL (2020-02-08)

19. 2017-06-14

On June 14, 2017, U.S. District Judge James Boasberg ruled that the Army Corps had not adequately considered how an oil spill could affect the Standing Rock Sioux Tribe's fishing and hunting rights or environmental justice, and ordered it to redo parts of its environmental analysis, while leaving the pipeline running.

- **Source:** Judge: Redo part of analysis for Dakota Access pipeline (MPR News)
- **In the posts:** Federal Judge Orders Environmental Review of DAPL (2017-06-15); A #NoDAPL Victory (2020-03-26)

20. 2017-07-24

Jessica Reznicek and Ruby Montoya publicly claimed responsibility for repeatedly sabotaging the Dakota Access Pipeline at a news conference outside the Iowa Utilities Board offices on July 24, 2017.

- **Source:** "We Acted from Our Hearts": Activists in Iowa Admit to Repeatedly Sabotaging Dakota Access Pipeline (Democracy Now!); Two Activists Claim Responsibility for Damage to Dakota Access Pipeline (Iowa Public Radio)
- **In the posts:** Silencing Protest (2019-10-07); Reject Learned Helplessness. Be at the IUB tomorrow. (2022-07-11)

21. 2017-11-16

On November 16, 2017, the existing Keystone pipeline leaked about 210,000 gallons of oil in Marshall County in northeastern South Dakota.

- **Source:** Keystone Pipeline Leaks 210K Gallons of Oil in South Dakota (Pipeline & Gas Journal)
- **In the posts:** Keystone Pipeline Spill (2017-11-18); Pipe for Keystone XL Pipeline Arrives (2018-11-01); Keystone XL Pipeline Resistance Continues (2018-08-15)

22. 2017-11-20

On November 20, 2017, the Nebraska Public Service Commission voted 3–2 to approve Keystone XL, but on a 'Mainline Alternative' route instead of TransCanada's preferred route.

- **Source:** Nebraska PSC approves Keystone XL's mainline alternative route (Oil & Gas Journal)
- **In the posts:** Keystone XL Pipeline Resistance Continues (2018-08-15); Breaking: Federal Court Overrules Trump and Calls For Full Environmental Review of Keystone XL in Nebraska (2018-08-17)

23. 2018-08-15

On August 15, 2018, U.S. District Judge Brian Morris ruled that the State Department must carry out a fuller environmental review of Keystone XL's Mainline Alternative route through Nebraska.

- **Source:** Judge Orders Full Environmental Review of Keystone XL Pipeline Route (Center for Biological Diversity)
- **In the posts:** Breaking: Federal Court Overrules Trump and Calls For Full Environmental Review of Keystone XL in Nebraska (2018-08-17)

24. 2018-11-08

On November 8, 2018, Judge Brian Morris in Montana blocked construction of Keystone XL, ruling that the Trump administration had not adequately reviewed the project, including climate impacts it had earlier found, and must supplement its environmental analysis.

- **Source:** Keystone XL pipeline blocked by U.S. judge (Global News); Judge blocks Keystone XL pipeline pending additional climate-impact review (ABA Journal)
- **In the posts:** Federal Judge says #NoKXL (2018-11-09); We say no, again, to Keystone XL pipeline (2019-04-14)

25. 2019-03-15

On March 15, 2019, the Ninth Circuit Court of Appeals denied TransCanada's request to let Keystone XL construction go forward while the court case continued.

- **Source:** TransCanada Loses Again in Latest Attempt to Begin Keystone XL Pipeline Construction (NRDC)
- **In the posts:** Grandmothers Fighting KXL (2019-03-21)

26. 2019-03-29

On March 29, 2019, President Trump issued a new presidential permit for Keystone XL to replace the March 2017 permit.

- **Source:** Trump issues new permit for stalled Keystone XL pipeline (Boston.com (AP))
- **In the posts:** The Prophecy of the Black Snake (2019-03-30); We say no, again, to Keystone XL pipeline (2019-04-14)

27. 2019-05-31

On May 31, 2019, the Iowa Supreme Court, in Puntenney v. Iowa Utilities Board, upheld the board's permit and its grant of eminent domain to Dakota Access; Justices Wiggins and Appel dissented in part and Justice McDonald dissented, calling the case moot.

- **Source:** Iowa Supreme Court Says Condemnation of Farmland for Dakota Access Pipeline was Constitutional (Iowa State University Center for Agricultural Law and Taxation); Puntenney v. Iowa Utilities Board (opinion) (Justia)
- **In the posts:** Iowa Supreme Court Decision (2019-05-31); Courts and pipelines (2021-04-11); We say no, again, to Keystone XL pipeline (2019-04-14)

28. 2019-05-31

The Iowa Supreme Court's Puntenney opinion states: 'We recognize that a serious and warranted concern about climate change underlies some of the opposition to the Dakota Access pipeline.'

- **Source:** Puntenney v. Iowa Utilities Board (opinion) (Justia)
- **In the posts:** Iowa Climate Defenders Five (2019-10-11); Climate Defenders Five Trial Today (2019-11-12)

29. 2020-02-22

On February 22, 2020, a CO2 pipeline ruptured near Satartia, Mississippi; more than 40 people were treated in hospitals and about 300 residents were evacuated.

> ***Note:*** *Sources give 45–49 people hospitalized.*

- **Source:** Satartia gas rupture hospitalizes 46 and displaces 300 (Vicksburg Daily News); CO2 Pipelines and Carbon Capture: The Satartia Mississippi Accident Investigation (Climate Investigations Center)
- **In the posts:** CO2 Pipeline Dangers (2022-01-24); Survivors of Carbon pipeline explosion tell their stories (2022-01-25); Carbon capture in Iowa (2021-12-04)

30. 2020-03

In March 2020 the Iowa Utilities Board approved Dakota Access's request to raise the pipeline's flow from 550,000 to up to 1.1 million barrels per day by adding pumping capacity.

- **Source:** Utilities Board allows Dakota Access Pipeline to double oil flow in Iowa (Business Record); Amid COVID-19 Pandemic, Some Pipeline Projects Push Forward While Others Falter Nationwide (DeSmog)
- **In the posts:** When you believe in your prayers, pipelines end (2020-07-07); NoDAPL in Iowa Since 2014 (2021-04-07)

31. 2020-03-25

On March 25, 2020, a federal court ruled that the Army Corps violated the National Environmental Policy Act in reaffirming the Dakota Access permits and ordered the Corps to prepare a full environmental impact statement.

- **Source:** Standing Rock Sioux Tribe Prevails as Federal Judge Strikes Down DAPL Permits (Earthjustice)
- **In the posts:** A #NoDAPL Victory (2020-03-26); DAPL Permit Revoked (2020-03-27); NoDAPL Fight Moves From Courts to White House (2021-02-05)

32. 2020-07-06

On July 6, 2020, Judge James Boasberg ordered the Dakota Access Pipeline shut down and emptied of oil within 30 days while the environmental impact statement was prepared.

- **Source:** Court Rules That Dakota Access Pipeline Must Be Emptied For Now (NPR)
- **In the posts:** When you believe in your prayers, pipelines end (2020-07-07); "A Dream that Comes True" (2020-07-08); Indigenous Rights and Environment Rights are Intrinsically Intertwined (2020-07-14)

33. 2020-08-05

On August 5, 2020, the D.C. Circuit Court of Appeals set aside the order to shut down the pipeline, so oil kept flowing while the case continued.

- **Source:** Dakota Access Pipeline (Wikipedia)
- **In the posts:** Breaking: DAPL court decision! (2020-08-07); Courts and pipelines (2021-04-11)

34. 2021-01

In January 2021 the D.C. Circuit upheld the cancellation of the Dakota Access easement under Lake Oahe pending a full environmental impact statement, but reversed the order to empty the pipeline.

- **Source:** Appeals court issues opinion on pipeline easement (North Dakota Courts); The Hits Keep Coming: DC Circuit Vacates Dakota Access Pipeline's Federal Easement (Morgan Lewis)
- **In the posts:** Courts and pipelines (2021-04-11); Standing Rock Lakota Youth Runners Say #ShutDownDAPL (2021-02-07); NoDAPL Fight Moves From Courts to White House (2021-02-05)

35. 2021-01-20

On January 20, 2021, his first day in office, President Joe Biden revoked the presidential permit for the Keystone XL pipeline.

- **Source:** TC Energy officially terminates Keystone XL pipeline after Biden revokes permit (World Oil)

- **In the posts:** Keystone XL Pipeline Permit Canceled (2021-01-21); My introduction to LANDBACK (2021-05-14); Keystone XL is dead (2021-06-10)

36. 2021-04-09

On April 9, 2021, the Army Corps of Engineers under the Biden administration told the federal court it would not shut down the Dakota Access Pipeline, even though the pipeline lacked a valid federal easement.

- **Source:** Standing Rock Sioux Tribe 'gravely concerned' about DAPL's continued operation under Biden (Daily Kos)
- **In the posts:** Courts and pipelines (2021-04-11)

37. 2021-06-09

On June 9, 2021, TC Energy announced it was terminating the Keystone XL pipeline project.

- **Source:** TC Energy officially terminates Keystone XL pipeline after Biden revokes permit (World Oil)
- **In the posts:** Keystone XL is dead (2021-06-10)

38. 2021-10-01

Enbridge's replacement Line 3 tar sands pipeline, running from Hardisty, Alberta, across northern Minnesota to Superior, Wisconsin, began operating on October 1, 2021, after protests in which hundreds of people were arrested.

- **Source:** Line 3 pipeline (Wikipedia); The Line 3 oil pipeline project: What you need to know (MPR News)
- **In the posts:** #ShutDownDAPL #NoLine3 #NoKXL (2021-02-12); Treaties Not Tar Sands (2021-08-25); Line 3 pipeline (2021-08-01); Another World is Possible (2021-10-24)

39. 2021–2023

Navigator CO2 Ventures' Heartland Greenway, a second carbon pipeline proposed through Iowa and neighboring states, was backed by BlackRock's Global Energy & Power Infrastructure Fund III.

- **Source:** The Great Carbon Boondoggle (Oakland Institute)
- **In the posts:** Carbon Capture update 4/4/2023 (2023-04-04); INDIGENOUS COMMUNITIES RISE TO RESIST CARBON PIPELINES (2022-12-21); Carbon capture in Iowa (2021-12-04)

40. 2021–2023

Summit Carbon Solutions' proposed Midwest Carbon Express, a roughly $4.5 billion CO2 pipeline, would carry about 12 million tons of carbon dioxide a year from ethanol plants in Iowa, Minnesota, Nebraska, South Dakota

and North Dakota to underground storage in North Dakota.

> ***Note:*** *The 2023 post quotes a figure of 31 ethanol plants; the Oakland Institute report says 33 biorefineries.*

- **Source:** The Great Carbon Boondoggle (Oakland Institute)
- **In the posts:** Carbon capture in Iowa (2021-12-04); Carbon pipeline opposition (2022-02-22); Iowa Carbon Pipeline Resistance (2022-03-30); Multiple Strategies (2023-06-01)

41. 2022-10-06

On October 6, 2022, the Iowa Utilities Board turned down the Winnebago Tribe's request for an independent environmental impact study of the Summit Carbon pipeline, saying it would consider environmental issues within the permit hearing.

- **Source:** The Great Carbon Boondoggle (Oakland Institute)
- **In the posts:** INDIGENOUS COMMUNITIES RISE TO RESIST CARBON PIPELINES (2022-12-21)

42. 2025-02-24

On February 24, 2025, a civil trial began in North Dakota state court in which Energy Transfer, the company behind the Dakota Access Pipeline, sought about $300 million in damages from Greenpeace over the Standing Rock protests.

- **Source:** Protest Rights Are at Stake as Pipeline Company Brings Greenpeace to Trial (Truthout)
- **In the posts:** Protest Rights at Stake (2025-02-24)

Not yet verified

These statements appear in the posts but could not be checked against an outside source during this pass. They are not confirmed and not shown to be wrong.

- Nearly 600 water protectors had been arrested in the Line 3 resistance by August 2021. In the posts: Line 3 pipeline
- RAN's 2013 training program produced about 400 Action Leaders, who in turn trained nearly 4,000 local activists. In the posts: Keystone XL Pipeline Permit Canceled